

SOFTWARE SERVICES AGREEMENT

Agreement No.: SSA-2024-0847 **Effective Date:** March 15, 2024 **Jurisdiction:** State of Delaware, United States of America

PARTIES

This Software Services Agreement ("Agreement") is entered into as of the Effective Date set forth above, by and between:

SERVICE PROVIDER: NexaTech Solutions, Inc., a Delaware corporation, with its principal place of business at 1200 Innovation Drive, Suite 400, Wilmington, Delaware 19801 ("Service Provider" or "Company");

AND

CLIENT: Meridian Financial Group LLC, a limited liability company organized under the laws of New York, with its principal place of business at 350 Park Avenue, 22nd Floor, New York, New York 10022 ("Client").

Service Provider and Client are each referred to herein individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, Service Provider is in the business of developing, licensing, and providing software solutions and related professional services;

WHEREAS, Client desires to engage Service Provider to provide certain software services as described herein, and Service Provider desires to provide such services to Client, in each case subject to the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

ARTICLE I — DEFINITIONS

1.1 "Affiliate" means, with respect to any entity, any other entity that directly or indirectly controls, is controlled by, or is under common control with such entity, where "control" means ownership of more than fifty percent (50%) of the outstanding voting securities.

1.2 "Confidential Information" means any non-public, proprietary, or confidential information disclosed by either Party to the other Party, whether orally, in writing, or by any other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure, including but not limited to: trade secrets, business plans, financial data, customer lists, technical data, source code, algorithms, product designs, and marketing strategies.

1.3 "Deliverables" means all work product, software, documentation, reports, data, analyses, and other materials created, developed, or delivered by Service Provider under a Statement of Work.

1.4 "Intellectual Property Rights" means all patents, copyrights, trademarks, trade secrets, moral rights, and any other intellectual property rights recognized under applicable law, whether registered or unregistered.

1.5 "Services" means the software development, implementation, maintenance, support, and related professional services described in one or more Statements of Work executed pursuant to this Agreement.

1.6 "Service Level Agreement" or "SLA" means the performance standards, uptime commitments, response times, and remediation procedures set forth in Exhibit B attached hereto and incorporated herein by reference.

1.7 "Statement of Work" or "SOW" means a written document, signed by authorized representatives of both Parties, that describes a specific scope of Services, Deliverables, timelines, milestones, fees, and other relevant terms, and is incorporated herein by reference upon execution.

1.8 "Term" has the meaning set forth in Section 10.1 of this Agreement.

1.9 "Third-Party Software" means any software licensed by a party other than Service Provider that is incorporated into or used in connection with the Services or Deliverables.

ARTICLE II — SERVICES

2.1 Scope of Services. Service Provider agrees to provide the Services to Client as more particularly described in each SOW executed by the Parties. In the event of any conflict between the terms of this Agreement and the terms of any SOW, the terms of the SOW shall control with respect to the specific engagement described therein, unless the SOW expressly states otherwise.

2.2 Change Orders. Either Party may request changes to the scope of Services set forth in an applicable SOW by submitting a written change order request. No change to the Services shall be binding unless agreed upon in writing and signed by authorized representatives of both Parties in a duly executed change order ("Change Order"). Service Provider shall not be obligated to perform any work outside the scope of an executed SOW absent a duly executed Change Order.

2.3 Subcontractors. Service Provider may engage subcontractors or independent contractors to perform portions of the Services; provided, however, that (a) Service Provider shall remain fully responsible and liable to Client for all acts and omissions of such subcontractors or contractors; (b) Service Provider shall ensure that all such subcontractors and contractors are bound by confidentiality obligations no less restrictive than those set forth herein; and (c) Service Provider shall not engage any subcontractor or contractor that is a direct competitor of Client without Client's prior written consent.

2.4 Client Cooperation. Client acknowledges that Service Provider's ability to perform the Services is dependent upon Client's timely cooperation and assistance, including providing access to necessary systems, data, personnel, and facilities. Client agrees to promptly provide all information, materials, decisions, and approvals reasonably requested by Service Provider. Any delay in Client's provision of cooperation may result in a corresponding delay in Service Provider's performance, and Service Provider shall not be liable for any such delay to the extent attributable to Client's failure to cooperate.

2.5 Compliance with Laws. Each Party shall comply with all applicable federal, state, and local laws, regulations, and ordinances in connection with its performance under this Agreement, including, without limitation, all applicable data protection and privacy laws.

ARTICLE III — FEES AND PAYMENT

3.1 Fees. Client shall pay Service Provider the fees set forth in each applicable SOW ("Fees"). Unless otherwise specified in the applicable SOW, Fees are stated in United States Dollars and are exclusive of all applicable taxes.

3.2 Invoicing and Payment Terms. Service Provider shall invoice Client on a monthly basis, or as otherwise specified in the applicable SOW. Client shall pay all undisputed invoices within thirty (30) days of the invoice date ("Payment Due Date"). All payments shall be made by wire transfer, ACH, or such other method as the Parties may mutually agree in writing.

3.3 Late Payment. Any amounts not paid by Client by the Payment Due Date shall accrue interest from the Payment Due Date until the date of actual payment at a rate equal to the lesser of: (a) one and one-half percent (1.5%) per month; or (b) the maximum rate permitted by applicable law. Service Provider reserves the right to suspend performance of the Services upon ten (10) days' written notice in the event that any undisputed invoice remains unpaid for more than thirty (30) days past the Payment Due Date.

3.4 Disputed Invoices. Client shall notify Service Provider in writing of any disputed invoice amounts within fifteen (15) business days of receipt of the invoice, specifying in reasonable detail the basis for the dispute. The Parties shall work in good faith to resolve any such disputes within thirty (30) days of Service Provider's receipt of Client's written notice. Client shall not withhold payment of undisputed amounts pending resolution of any disputed amounts.

3.5 Taxes. Client shall be solely responsible for all sales, use, value-added, and other taxes and duties imposed by any governmental authority on the Services or Deliverables provided under this Agreement, excluding taxes imposed on Service Provider's income. If Service Provider is required by law to collect and remit any such taxes, Client shall pay such taxes in addition to the Fees.

3.6 Expense Reimbursement. Service Provider shall be reimbursed for all reasonable and documented pre-approved out-of-pocket expenses incurred in connection with the Services, including travel, lodging, and materials. Service Provider shall obtain Client's prior written approval for any individual expense exceeding Five Hundred Dollars (\$500.00).

ARTICLE IV — INTELLECTUAL PROPERTY

4.1 Pre-Existing IP. Each Party shall retain all right, title, and interest in and to its Pre-Existing IP. "Pre-Existing IP" means all Intellectual Property Rights owned or licensed by a Party prior to the Effective Date, or developed by a Party independently of this Agreement. Nothing in this Agreement shall be construed as a transfer or assignment of any Pre-Existing IP.

4.2 Work Made for Hire; Assignment. Subject to Client's full payment of all applicable Fees, all Deliverables created specifically and exclusively for Client pursuant to a SOW that qualifies as "work made for hire" under applicable copyright law shall be deemed work made for hire and shall be the exclusive property of Client. To the extent any Deliverable does not qualify as work made for hire, Service Provider hereby irrevocably assigns to Client all right, title, and interest in and to such Deliverables, including all Intellectual Property Rights therein.

4.3 License to Service Provider Tools. Notwithstanding Section 4.2, Client acknowledges that Service Provider may incorporate certain proprietary tools, frameworks, libraries, methodologies, and know-how developed independently by Service Provider ("Service Provider Tools") into the Deliverables. Service Provider hereby grants to Client a non-exclusive, royalty-free, perpetual, irrevocable, worldwide license to use the Service Provider Tools solely to the extent embedded in or necessary for Client's use of the applicable Deliverables. Client shall have no right to sublicense, reverse engineer, or modify the Service Provider Tools except as permitted by applicable law.

4.4 License to Client Materials. Client hereby grants to Service Provider a limited, non-exclusive, royalty-free license during the Term to use, reproduce, modify, and process Client's data, content, and materials solely to the extent necessary for Service Provider to perform the Services.

4.5 Feedback. If Client provides Service Provider with any suggestions, enhancement requests, recommendations, or other feedback relating to the Services or Deliverables ("Feedback"), Client hereby grants Service Provider a non-exclusive, worldwide, perpetual, irrevocable, royalty-free license to use, incorporate, and exploit such Feedback in any manner without restriction or obligation to Client.

ARTICLE V — CONFIDENTIALITY

5.1 Obligations of Confidentiality. Each Party ("Receiving Party") agrees that it shall: (a) hold all Confidential Information of the other Party ("Disclosing Party") in strict confidence; (b) not disclose or make available any Confidential Information to any third party without the prior written consent of the Disclosing Party; (c) use the Confidential Information solely for the purposes of performing its obligations or exercising its rights under this Agreement; and (d) protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

5.2 Permitted Disclosures. Notwithstanding Section 5.1, the Receiving Party may disclose Confidential Information to its employees, officers, directors, agents, contractors, advisors, and legal counsel (collectively, "Representatives") on a strict need-to-know basis, provided that such Representatives are bound by confidentiality obligations no less protective than those set forth herein, and the Receiving Party remains liable for any breach of such obligations by its Representatives.

5.3 Exclusions. The obligations in Section 5.1 shall not apply to information that: (a) is or becomes publicly known through no breach of this Agreement by the Receiving Party; (b) was rightfully known by the Receiving Party without restriction prior to disclosure by the Disclosing Party; (c) is rightfully received by the Receiving Party from a third party without restriction on disclosure; (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or (e) is required to be disclosed by applicable law, regulation, or court order, provided that the Receiving Party gives the Disclosing Party prompt written notice of such requirement (to the extent legally permitted) and cooperates with the Disclosing Party in seeking a protective order.

5.4 Return or Destruction. Upon termination or expiration of this Agreement, or upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy (and certify in writing the destruction of) all tangible materials embodying Confidential Information, except to the extent the Receiving Party is required to retain copies pursuant to applicable law or regulatory requirement.

5.5 Injunctive Relief. The Parties acknowledge that a breach of this Article V would cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, in the event of any breach or threatened breach of this Article V, the Disclosing Party shall be entitled to seek immediate injunctive and other equitable relief without the requirement of posting a bond or other security, in addition to any other remedies available at law or in equity.

5.6 Survival. The obligations of confidentiality set forth in this Article V shall survive termination or expiration of this Agreement for a period of five (5) years; provided that obligations with respect to trade secrets shall survive indefinitely.

ARTICLE VI — REPRESENTATIONS AND WARRANTIES

6.1 Mutual Representations and Warranties. Each Party represents and warrants to the other Party that: (a) it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of organization; (b) it has the full power and authority to enter into and perform its obligations under this Agreement; (c) this Agreement constitutes a legally binding obligation enforceable against it in accordance with its terms; (d) the execution, delivery, and performance of this Agreement do not violate any applicable law, order, or agreement to which it is a party; and (e) it is not subject to any legal proceedings that would materially affect its ability to perform its obligations hereunder.

6.2 Service Provider Warranties. Service Provider further represents and warrants that: (a) the Services will be performed in a professional and workmanlike manner, consistent with industry standards and best practices; (b) the Deliverables will conform in all material respects to the specifications set forth in the applicable SOW; (c) the Deliverables, to Service Provider's knowledge, will not infringe upon or misappropriate any third party's Intellectual Property Rights; (d) Service Provider will perform the Services in compliance with all applicable laws and regulations; and (e) any software provided as part of the Services will not contain any viruses, malware, backdoors, or other malicious code.

6.3 Disclaimer of Warranties. EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, THE SERVICES AND DELIVERABLES ARE PROVIDED "AS IS," AND SERVICE PROVIDER EXPRESSLY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. SERVICE PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE.

ARTICLE VII — INDEMNIFICATION

7.1 Indemnification by Service Provider. Service Provider shall indemnify, defend, and hold harmless Client and its officers, directors, employees, agents, successors, and assigns (collectively, "Client Indemnitees") from and against any and all claims, actions, demands, losses, liabilities, damages, costs, and expenses (including reasonable attorneys' fees) ("Losses") arising out of or relating to: (a) any breach by Service Provider of its representations, warranties, or obligations under this Agreement; (b) the negligence or willful misconduct of Service Provider or its personnel; (c) any claim that the Deliverables infringe upon or misappropriate any third party's Intellectual Property Rights; or (d) any claims by Service Provider's employees or subcontractors arising out of their engagement with Service Provider.

7.2 Indemnification by Client. Client shall indemnify, defend, and hold harmless Service Provider and its officers, directors, employees, agents, successors, and assigns (collectively, "Service Provider Indemnitees") from and against any Losses arising out of or relating to: (a) any breach by Client of its representations, warranties, or obligations under this Agreement; (b) the negligence or willful misconduct of Client or its personnel; (c) Client's use of the Services or Deliverables in a manner not authorized by or inconsistent with this Agreement; or (d) Client's data, content, or materials, including any claim that such materials infringe upon or misappropriate any third party's rights.

7.3 Indemnification Procedures. The Party seeking indemnification ("Indemnified Party") shall: (a) promptly notify the indemnifying party ("Indemnifying Party") in writing of any claim for which indemnification is sought; (b) grant the Indemnifying Party sole control over the defense and settlement of such claim, provided that the Indemnifying Party shall not settle any claim without the Indemnified Party's prior written consent if such settlement imposes any obligation, liability, or restriction on the Indemnified Party; and (c) provide reasonable cooperation to the Indemnifying Party in the defense of such claim, at the Indemnifying Party's expense. Failure to provide timely notice shall not relieve the Indemnifying Party of its indemnification obligations except to the extent the Indemnifying Party is materially prejudiced by such failure.

ARTICLE VIII — LIMITATION OF LIABILITY

8.1 Exclusion of Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF REVENUE, LOSS OF PROFITS, LOSS OF DATA, LOSS OF BUSINESS, OR COST OF SUBSTITUTE GOODS OR SERVICES, ARISING OUT OF OR RELATED TO THIS AGREEMENT, REGARDLESS OF THE THEORY OF LIABILITY AND EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

8.2 Cap on Liability. EXCEPT WITH RESPECT TO (A) EITHER PARTY'S INDEMNIFICATION OBLIGATIONS UNDER ARTICLE VII, (B) EITHER PARTY'S BREACH OF ARTICLE V (CONFIDENTIALITY), (C) CLIENT'S PAYMENT OBLIGATIONS UNDER ARTICLE III, OR (D) DAMAGES ARISING FROM A PARTY'S FRAUD, GROSS NEGLIGENCE, OR WILLFUL MISCONDUCT, IN NO EVENT SHALL EITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED THE TOTAL FEES ACTUALLY PAID OR PAYABLE BY CLIENT TO SERVICE PROVIDER DURING THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE DATE OF THE CLAIM GIVING RISE TO SUCH LIABILITY.

8.3 Essential Basis. THE PARTIES ACKNOWLEDGE THAT THE LIMITATIONS OF LIABILITY IN THIS ARTICLE VIII REFLECT A REASONABLE ALLOCATION OF RISK AND ARE AN ESSENTIAL BASIS OF THE BARGAIN BETWEEN THE PARTIES AND THAT SERVICE PROVIDER WOULD NOT HAVE ENTERED INTO THIS AGREEMENT WITHOUT SUCH LIMITATIONS.

ARTICLE IX — DATA PROTECTION AND SECURITY

9.1 Data Processing. To the extent Service Provider processes any personal data on behalf of Client in connection with the Services, such processing shall be governed by the Data Processing Addendum attached hereto as Exhibit C and incorporated herein by reference. In the event of any conflict between this Agreement and the Data Processing Addendum, the terms of the Data Processing Addendum shall control with respect to the processing of personal data.

9.2 Security Measures. Service Provider shall implement and maintain commercially reasonable technical, administrative, and physical safeguards designed to protect Client's data against unauthorized access, disclosure, alteration, or destruction, consistent with industry standards, including but not limited to ISO 27001 or SOC 2 Type II compliance.

9.3 Security Incident Notification. Service Provider shall notify Client in writing within seventy-two (72) hours of becoming aware of any actual or reasonably suspected unauthorized access to, or acquisition, use, disclosure, or destruction of, Client's data (a "Security Incident"). Such notification shall include: (a) a description of the nature of the Security Incident; (b) the categories and approximate volume of data involved; (c) the likely consequences of the Security Incident; and (d) the measures taken or proposed to address the incident.

ARTICLE X — TERM AND TERMINATION

10.1 Term. This Agreement shall commence on the Effective Date and shall continue for an initial term of three (3) years ("Initial Term"), unless earlier terminated in accordance with this Article X. Thereafter, this Agreement shall automatically renew for successive one (1) year periods (each, a "Renewal Term," and together with the Initial Term, the "Term"), unless either Party provides the other Party with written notice of non-renewal at least ninety (90) days prior to the expiration of the then-current Term.

10.2 Termination for Cause. Either Party may terminate this Agreement or any SOW immediately upon written notice if the other Party: (a) materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice specifying the nature of the breach in reasonable detail (provided that if the breach is not capable of being cured within such thirty (30) day period, the breaching party shall have an additional reasonable period, not to exceed sixty (60) days, to cure such breach, so long as it commences cure within the initial thirty (30) day period and diligently pursues such cure); (b) becomes insolvent or makes a general assignment for the benefit of creditors; (c) has a receiver appointed for it or its assets; (d) commences, or has commenced against it, any proceeding under any bankruptcy or insolvency law; or (e) ceases to conduct its business in the ordinary course.

10.3 Termination for Convenience. Client may terminate this Agreement or any SOW for convenience upon sixty (60) days' prior written notice to Service Provider. In the event of such termination, Client shall pay Service Provider for all Services performed and expenses incurred up to and including the effective date of termination, together with any non-cancellable commitments made by Service Provider in reasonable reliance on this Agreement.

10.4 Effects of Termination.

(a) Upon expiration or termination of this Agreement for any reason:

- (i) all outstanding SOWs shall terminate, unless specifically agreed otherwise in writing;
- (ii) each Party shall promptly return or destroy the other Party's Confidential Information in accordance with Section 5.4;
- (iii) any licenses granted hereunder shall terminate, except as expressly set forth herein;
- (iv) each Party shall pay all amounts owed to the other Party as of the termination date.

(b) Termination shall not relieve either Party of any liability for obligations accrued prior to the effective date of termination, including, without limitation, Client's obligation to pay for Services rendered.

10.5 Survival. The following provisions shall survive expiration or termination of this Agreement: Article I (Definitions), Article IV (Intellectual Property, to the extent of rights vested prior to termination), Article V (Confidentiality), Article VII (Indemnification), Article VIII (Limitation of Liability), this Section 10.5 (Survival), Article XI (Dispute Resolution), and Article XII (General Provisions).

ARTICLE XI — DISPUTE RESOLUTION

11.1 Informal Resolution. In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or validity thereof ("Dispute"), the Parties shall first attempt to resolve such Dispute through good-faith negotiation between senior representatives of the Parties for a period of thirty (30) days following written notice of the Dispute from one Party to the other (the "Negotiation Period").

11.2 Mediation. If the Dispute is not resolved within the Negotiation Period, the Parties shall attempt to resolve the Dispute through non-binding mediation administered by JAMS (Judicial Arbitration and Mediation Services) in accordance with its then-current mediation procedures. The mediation shall take place in New York, New York, unless otherwise agreed by the Parties. The costs of the mediator shall be shared equally by the Parties.

11.3 Binding Arbitration. If mediation fails to resolve the Dispute within sixty (60) days of the commencement of mediation (or such longer period as the Parties may agree in writing), either Party may submit the Dispute to binding arbitration administered by JAMS in accordance with its Comprehensive Arbitration Rules and Procedures. The arbitration shall be conducted by a single arbitrator mutually agreed upon by the Parties, or if the Parties cannot agree, appointed by JAMS. The place of arbitration shall be New York, New York. The language of arbitration shall be English. The arbitrator's decision shall be final and binding on both Parties, and judgment on the award may be entered in any court of competent jurisdiction.

11.4 Exceptions. Notwithstanding the foregoing, either Party may seek emergency or preliminary injunctive relief from a court of competent jurisdiction to prevent irreparable harm pending the resolution of a Dispute, without waiving its right to pursue arbitration with respect to the underlying Dispute.

11.5 Confidentiality of Proceedings. The existence and content of all arbitration proceedings, including any award, shall be confidential and shall not be disclosed to any third party without the prior written consent of both Parties, except as required by applicable law or to enforce an arbitral award.

ARTICLE XII — GENERAL PROVISIONS

12.1 Governing Law. This Agreement and all disputes arising hereunder shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws provisions.

12.2 Entire Agreement. This Agreement, together with all Exhibits and SOWs attached hereto or executed in connection herewith, constitutes the entire agreement between the Parties with respect to the subject matter hereof, and supersedes all prior and contemporaneous agreements, representations, negotiations, and understandings of the Parties, whether written or oral, with respect to such subject matter.

12.3 Amendments. No amendment, modification, or waiver of any provision of this Agreement shall be valid or binding unless made in writing and duly executed by authorized representatives of both Parties.

12.4 Waiver. No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof. No single or partial exercise of any right, power, or remedy shall preclude any other or further exercise thereof or the exercise of any other right, power, or remedy.

12.5 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable under applicable law, such provision shall be deemed modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not be affected or impaired thereby.

12.6 Assignment. Neither Party may assign or transfer this Agreement, or any of its rights or obligations hereunder, without the prior written consent of the other Party, which consent shall not be unreasonably withheld, conditioned, or delayed; provided, however, that either Party may assign this Agreement without the other Party's consent to: (a) an Affiliate; or (b) a successor entity in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets. Any purported assignment in violation of this Section 12.6 shall be null and void.

12.7 Notices. All notices, requests, demands, and other communications required or permitted under this Agreement shall be in writing and shall be deemed duly given when: (a) personally delivered; (b) sent by nationally recognized overnight courier with written confirmation of receipt; (c) sent by certified or registered mail, return receipt requested, postage prepaid; or (d) sent by email with delivery confirmation, to the addresses set forth on the signature page hereto, or such other address as either Party may designate in writing.

12.8 Force Majeure. Neither Party shall be liable for any failure or delay in performance under this Agreement to the extent such failure or delay is caused by circumstances beyond such Party's reasonable control, including but not limited to acts of God, natural disasters, pandemics, acts of government, war, terrorism, labor disputes, or internet or utility outages ("Force Majeure Event"), provided that: (a) the affected Party promptly notifies the other Party of the Force Majeure Event; (b) the affected Party uses commercially reasonable efforts to minimize the impact of and overcome the Force Majeure Event; and (c) the Force Majeure Event does not persist for more than ninety (90) consecutive days, after which either Party may terminate this Agreement upon written notice.

12.9 Relationship of the Parties. The Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, franchise, employment, or fiduciary relationship between the Parties. Neither Party shall have the authority to bind the other Party or incur any obligation on behalf of the other Party.

12.10 Third-Party Beneficiaries. This Agreement is entered into solely for the benefit of the Parties and their respective permitted successors and assigns. Nothing in this Agreement shall confer any rights or remedies upon any third party.

12.11 Counterparts; Electronic Signatures. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding to the same extent as original signatures.

12.12 Headings. The headings of the articles and sections of this Agreement are for convenience of reference only and shall not affect the meaning or interpretation of this Agreement.

12.13 Construction. This Agreement shall be construed without regard to any presumption or rule requiring construction against the Party causing this Agreement to be drafted. The word "including" shall be deemed to mean "including without limitation."

SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have caused this Software Services Agreement to be executed by their duly authorized representatives as of the Effective Date.

NEXATECH SOLUTIONS, INC.

Signature: _____
Name: Jonathan R. Hargrove
Title: Chief Executive Officer
Date: March 15, 2024
Email: j.hargrove@nexatech.io
Address: 1200 Innovation Drive, Suite 400
Wilmington, Delaware 19801

MERIDIAN FINANCIAL GROUP LLC

Signature: _____
Name: Sarah T. Winthrop
Title: Chief Operating Officer
Date: March 15, 2024
Email: s.winthrop@meridianfg.com
Address: 350 Park Avenue, 22nd Floor
New York, New York 10022

EXHIBIT A — STATEMENT OF WORK NO. 001

SOW Number: SOW-001 **SOW Effective Date:** March 15, 2024 **Project Name:** Meridian Core Analytics Platform — Phase 1

A.1 Project Overview

Service Provider shall design, develop, test, and deploy a cloud-based analytics platform (the "Platform") for Client's internal use, enabling real-time financial reporting, risk monitoring dashboards, and regulatory compliance reporting as further described herein.

A.2 Scope of Services

Service Provider shall perform the following Services:

- 1. **Discovery & Requirements Analysis** — Conduct stakeholder interviews, review existing systems and data architecture, and deliver a written requirements specification document within twenty (20) business days of SOW execution.
- 2. **System Architecture Design** — Design the technical architecture for the Platform, including cloud infrastructure, data pipelines, API specifications, and security framework. Deliverable: Architecture Design Document.
- 3. **Development — Sprint 1 through Sprint 8** — Develop the Platform in accordance with the requirements specification, using an Agile development methodology. Bi-weekly sprint reviews shall be held with Client stakeholders.
- 4. **Quality Assurance & Testing** — Conduct unit testing, integration testing, system testing, and user acceptance testing (UAT) in collaboration with Client's designated QA personnel.
- 5. **Deployment & Go-Live Support** — Deploy the Platform to Client's designated cloud environment and provide on-site go-live support for a period of five (5) business days.
- 6. **Documentation & Training** — Deliver technical documentation, user manuals, and administer two (2) training sessions for Client's end users.

A.3 Milestones and Delivery Schedule

Milestone	Deliverable	Due Date
M-1	Requirements Specification Document	April 15, 2024
M-2	Architecture Design Document	May 1, 2024
M-3	Sprint 1-4 Demo (Beta Build)	July 1, 2024
M-4	Sprint 5-8 Demo (Release Candidate)	September 1, 2024
M-5	UAT Completion Sign-off	September 30, 2024
M-6	Production Deployment	October 15, 2024
M-7	Documentation & Training	October 31, 2024

A.4 Fees

- **Fixed-Fee Development:** USD \$480,000, payable in monthly installments of USD \$60,000 over eight (8) months commencing April 1, 2024.
- **Go-Live Support (T&M):** USD \$250 per hour, capped at USD \$12,500.
- **Training:** Included in Fixed Fee.
- **Expenses:** Reimbursable per Section 3.6 of the Agreement.

A.5 Client Responsibilities

Client shall:

- Assign a dedicated Project Manager and at least two (2) subject matter experts to participate in discovery, sprint reviews, and UAT.
- Provide access to existing systems, APIs, and data sources within five (5) business days of written request.
- Provision the required cloud infrastructure (AWS or Azure, as agreed) prior to M-3.
- Provide timely written feedback on all Deliverables within five (5) business days of receipt.

EXHIBIT B — SERVICE LEVEL AGREEMENT

B.1 Applicability

This Service Level Agreement ("SLA") applies to the production environment of the Platform following the go-live date (the "Service Commencement Date").

B.2 Definitions

- **"Uptime"** means the percentage of time in a calendar month during which the Platform is available and operational, excluding Scheduled Maintenance Windows.
- **"Downtime"** means any period during which the Platform is unavailable or materially non-functional, excluding Scheduled Maintenance and Excused Downtime.
- **"Scheduled Maintenance Window"** means maintenance periods scheduled between 12:00 AM and 4:00 AM Eastern Time on Sundays, with at least forty-eight (48) hours' prior written notice to Client.
- **"Excused Downtime"** means downtime attributable to: (i) Force Majeure Events; (ii) Client's acts or omissions; (iii) Third-Party Software failures outside Service Provider's reasonable control; or (iv) Client-initiated changes.

B.3 Uptime Commitment

Service Tier	Monthly Uptime Commitment
Core Platform	99.5%
Reporting Module	99.0%
Data Ingestion Pipelines	99.0%

Monthly Uptime Calculation:
$$\frac{((\text{Total Minutes in Month} - \text{Downtime Minutes}) / \text{Total Minutes in Month}) \times 100}{}$$

B.4 Incident Response Times

Priority	Description	Initial Response	Resolution Target
P1 — Critical	Full Platform outage or data loss	15 minutes	4 hours
P2 — High	Core feature degraded, no workaround	1 hour	8 hours
P3 — Medium	Feature degraded, workaround available	4 hours	2 business days
P4 — Low	Minor issue, cosmetic, informational	1 business day	5 business days

B.5 Service Credits

In the event that Service Provider fails to meet the Uptime Commitment in any calendar month, Client shall be entitled to a service credit as follows:

Monthly Uptime Achieved	Service Credit
99.0% - < 99.5%	5% of Monthly Fee
95.0% - < 99.0%	10% of Monthly Fee
< 95.0%	25% of Monthly Fee

Service credits are Client's sole and exclusive remedy for Uptime failures and shall be applied as a credit against future invoices. Service credits shall not be applied against any amounts past due. Total service credits in any calendar month shall not exceed twenty-five percent (25%) of the applicable monthly fee.

EXHIBIT C — DATA PROCESSING ADDENDUM

C.1 Purpose and Scope

This Data Processing Addendum ("DPA") supplements the Agreement and governs the processing of personal data (as defined under applicable data protection laws, including the California Consumer Privacy Act ("CCPA"), the General Data Protection Regulation (EU) 2016/679 ("GDPR"), and any other applicable data protection laws) by Service Provider on behalf of Client.

C.2 Roles of the Parties

Client is the "controller" (or "business" under CCPA) and Service Provider is the "processor" (or "service provider" under CCPA) with respect to the personal data processed under the Agreement.

C.3 Processing Instructions

Service Provider shall process personal data only on documented instructions from Client, including as set forth in this Agreement and any applicable SOW. Service Provider shall promptly notify Client if, in its reasonable opinion, an instruction infringes applicable data protection laws.

C.4 Categories of Personal Data Processed

Category	Examples	Purpose
Financial Data	Account numbers, transaction histories	Platform analytics and reporting
Employee Data	Names, email addresses, department	User authentication and audit logging
Client-End User Data	As defined in applicable SOWs	Service delivery

C.5 Sub-Processors

Service Provider shall not engage any sub-processor to process Client's personal data without Client's prior written consent. Service Provider shall maintain an up-to-date list of approved sub-processors and shall notify Client of any proposed changes at least thirty (30) days in advance.

C.6 Data Subject Rights

Service Provider shall, to the extent legally permitted, promptly notify Client of any request from a data subject to exercise rights under applicable data protection law (e.g., access, deletion, portability), and shall provide reasonable assistance to enable Client to respond to such requests within the timeframes required by applicable law.

C.7 Data Transfers

Service Provider shall not transfer personal data outside the European Economic Area (EEA) or to countries not recognized by the European Commission as providing an adequate level of data protection, without: (a) Client's prior written consent; and (b) implementing appropriate transfer mechanisms as required by applicable law, such as Standard Contractual Clauses approved by the European Commission.

C.8 Audit Rights

Upon Client's written request, and no more than once per calendar year (unless required by a regulatory authority), Service Provider shall provide Client with access to documentation and information necessary to demonstrate compliance with this DPA, and shall permit Client (or a qualified third-party auditor appointed by Client and subject to reasonable confidentiality obligations) to conduct audits of Service Provider's data processing activities, with reasonable advance notice and during normal business hours.

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